



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

January 11, 2022, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

COMMISSION MEMBERS PRESENT: Jason Allen, Jeremy Bergener, and Matthew Everett. Commissioners Christopher Pengra and Erin Wells were excused.

ELECTED OFFICIALS PRESENT: Councilmember Donna Burnham, Primary Liaison to the Planning Commission.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Robert Hobbs, Planning Manager; Tayler Jensen, Senior Planner; and Elizabeth Fewkes, Recording Secretary.

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

Commissioner Everett called the meeting to order at 5:35 p.m.

1. Discussion Items

1.A. DISCUSSION – Planning Commission Guidelines

Senior Planner Tayler Jensen presented the item and explained the purpose of the discussion was to clarify and ask questions regarding the Planning Commission Rules of Order and Procedure.

Discussion ensued regarding the Rules of Order and Procedure guidelines for conflicts of interests when an abstention results in a split vote, concerns with compelling votes, perceived versus statutory conflicts of interests, ratification of actions due to lack of quorum, allowing a designee to function in the place of the Planning Commission Chair in assisting with setting the agenda if necessary, emphasizing application deadlines, creating a notification mechanism for upcoming appeals, ex parte conversations and disclosures, and benefits and concerns with potentially amending the procedures of order and decorum to allow the applicant to speak prior to the staff presentation to prevent the perception of staff endorsing or promoting the item.

Commissioner Everett requested for the item to return on a future agenda.

1.B. DISCUSSION – Code Amendment – New, Draft, Drainages/Washes Overlay Zone

Planning Manager Robert Hobbs presented the item. In conjunction with the passage of EMMC 17.63, it was intended for the now redundant EMMC 17.62 to be repealed and removed from Municipal Code once EMMC 17.63 was enacted. However, that action did not take place. Accordingly, staff is now proposing EMMC 17.62 be stricken from the standards as was contemplated and replaced with new overlay zone standards to provide reasonable protection to

certain natural, drainage washes. Staff anticipates possibly inviting other relevant parties' input in the future as well before bringing the text back for formal hearing vetting. The areas needing the most attention are Sections 17.45.070 and 17.45.100 to identify protected wash locations and the allowances and restrictions that will be applied to development around and adjoining the natural features.

Discussion ensued regarding the development of washes unintentionally excluded from the map and overlay, the mechanism for identifying protected washes, potential inclusion of interested parties and citizen groups in the process, whether to have statistical requirements rather than mapping, the ability to apply multiple overlay zones on an area, the focus of State guidelines for stream alteration permits on protecting waterways, considerations for the portions of the Tickville Wash located on private property or commercial areas outside of the wildlife migration area, and applying protection to washes in accordance with the nature and use specific sections and/or washes.

1.C. DISCUSSION ITEM – Conflict of Interest

Mr. Jensen presented the item in fulfillment of the Municipal Code requirement for the annual review of the requirements for members of public bodies regarding disclosures of and vote abstentions due to conflicts of interests.

Commissioner Everett encouraged the Commissioners to continue the Commission's current practice of being overly cautious regarding conflicts of interest.

Assistant City Administrator/Community Development Director Steve Mumford stated that Planning Commissioners are advised against meeting with developers outside of the public meetings regarding development items. He encouraged the Commissioners to inform the other commissioners and staff of any private communications they have received from residents. The Planning Commission is a separate body and acts independently of the will and desires of the Council. Although the Commission may consider the likely opinion of the Council, it is inappropriate for Councilmembers to advise or direct the Commission regarding item recommendations.

Discussion ensued regarding the General Plan and other methods to assist the Commission with understanding the vision of the Council for the City to facilitate the working relationship between the Council and Commission while retaining their independence as separate bodies.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Everett called the policy session to order at 6:33 p.m.

2. Pledge of Allegiance

Commissioner Everett led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. December 14, 2021 Planning Commission Minutes

MOTION: *Commissioner Bergener moved to approve the December 14, 2021 minutes. Commissioner Allen seconded the motion. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.*

5. Status Report

Mr. Jensen reviewed the planning items discussed and voted upon during the January 4, 2022 City Council meeting.

6. Action and Advisory Items

6.A. Election of a Chair and Vice Chair for the Planning Commission

MOTION: *Commissioner Bergener moved to appoint Matthew Everett as the Planning Commission Chairman for 2022. Jason Allen seconded the motion. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.*

MOTION: *Commissioner Everett moved to appoint Erin Wells as the Planning Commission Vice Chairwoman for 2022. Commissioner Bergener seconded the motion. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.*

6.B. PUBLIC HEARING – Rush Creek Preliminary Plat

This item was removed from the agenda.

6.C. ACTION ITEM/PUBLIC HEARING – Eagle Point Townhomes Pool and Clubhouse

Mr. Jensen presented the item. The preliminary plat and site plan for Eagle Point Townhomes were approved on November 20, 2018. Since the approval of the site plan, the project has been sold. The new owner, DR Horton, has redesigned the pool and clubhouse area and changed the layout and location. As the pool and clubhouse were included in the original site plan, significant changes require a new site plan approval. The original approval included a 1,800 square-foot pool and a 2,500 square-foot clubhouse. The new plan proposes an approximately 2,550 square-foot pool, a 4,870 square-foot pool deck, and a 2,750 square-foot clubhouse.

Staff recommends that the Planning Commission motion to recommend approval of the Eagle Point Townhomes Pool and Clubhouse to the City Council, for the reasons set forth in the staff report and in the meeting.

Applicant representative Korey Kinder explained that they upsized the pool and clubhouse to accommodate the number of residents and to be a better fit and benefit to the community.

Commissioner Everett opened the public hearing at 6:44 p.m. As there were no comments, Commissioner Everett closed the hearing.

Commissioner Bergener expressed approval of the applicant increasing the size of the amenities. He does not anticipate any negative impacts from the proposed changes.

Commissioner Allen stated his appreciation for the augmentation of the amenities and feels the location of the amenities is appropriate for the community.

Commissioner Everett approved of the applicant providing a hopefully adequately sized and useable amenity. Based upon the previous approval and the precedence to allow parking as proposed, he is willing to recommend allowing the parking in the location as proposed.

Commissioner Bergener suggested addressing an exemption from the commercial parking requirements for pools and clubhouses in a future amendment to Municipal Code.

MOTION: *Commissioner Bergener moved to recommend approval to the City Council of the site plan for the Eagle Point Townhomes pool and clubhouse. Commissioner Allen seconded the motion. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.*

6.D. PUBLIC HEARING – Skyline Ridge Phase 2 Plat 6

Mr. Jensen presented the item. The Skyline Ridge Phase 2 Plat 6 Preliminary Plat was approved on February 19, 2019, with 23 units.

Staff recommends that the Planning Commission motion to recommend approval of the Skyline Ridge Phase 2 Plat 6 Amended Preliminary Plat to the City Council, for the reasons set forth in the staff report and in the meeting with the following conditions:

1. The maximum height of retaining walls shall be 5 feet with a maximum of four tiers, with all tiers to be evenly divided in height. All retaining walls should be inspected by a licensed geotechnical engineer throughout the construction period who will provide a letter at the completion of the project stating that the walls have been constructed per their recommendations and conform to typical construction requirements, including the stability makeup of the materials. Retaining walls shall not be located any closer than 10 feet from a home;
2. No blasting may be used in this project;
3. A fence and drainage swale shall be constructed on the top of any retaining wall area;

4. Homes shall be designed with the hillside to reduce necessary cutting/grading and retaining wall heights;
5. Lots that average 25% or greater slope shall be removed; and
6. All retaining walls, drainage, and required fence along the top of retaining walls shall be completed before home construction.

Applicant representative Shaun Athey explained that the excavation for Plat 5 resulted in more dirt removal than anticipated and they calculated that the original plan for Plat 6 would require approximately double the debris removal as Plat 5. They determined to adjust the plan to reduce the amount of excavation work and to retain more of the hillside as mutually beneficial for them and the community.

Commissioner Everett opened the public hearing at 6:51 p.m. As there were no comments, Commissioner Everett closed the hearing.

Commissioner Allen expressed support for the decrease in the number of units and less dirt removal resulting in fewer trucks on the road due to the reduced excavation. He agreed with prohibited blasting.

Mr. Jensen confirmed that the proposed plan excludes the development of lots with an average of 25% or greater slope.

Commissioner Everett supported recommending approval of the proposed decreased unit count and excluding blasting.

MOTION: *Commissioner Allen moved to recommend approval to the City Council of the amended preliminary plat for Skyline Ridge Phase 2 Plat 6 with the following conditions:*

1. *The maximum height of retaining walls shall be 5 feet with a maximum of four tiers, with all tiers to be evenly divided in height. All retaining walls should be inspected by a licensed geotechnical engineer throughout the construction period who will provide a letter at the completion of the project stating that the walls have been constructed per their recommendations and conform to typical construction requirements, including the stability makeup of the materials. Retaining walls shall not be located any closer than 10 feet from a home;*
2. *No blasting may be used in this project;*
3. *A fence and drainage swale shall be constructed on the top of any retaining wall area;*
4. *Homes shall be designed with the hillside to reduce necessary cutting/grading and retaining wall heights;*
5. *Lots that average 25% or greater slope shall be removed; and*
6. *All retaining walls, drainage, and required fence along the top of retaining walls shall be completed before home construction.*

Commissioner Everett seconded the motion. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.

6.E. PUBLIC HEARING – Fire Station 251

Mr. Jensen presented the item. Fire Station 251 is currently located near Eagle Mountain City Hall. On September 1, 2015, a site plan was approved and a modular was added to the fire station to serve as the living quarters for the firefighters stationed at 251. The modular was designed and intended to be a temporary solution until a new Fire Station 251 could be constructed to serve the City Center. On October 19, 2021, 1.25 acres were rezoned to the Public Facilities Zone to facilitate the construction of a new Fire Station 251. The applicant is seeking a site plan approval for this new Fire Station 251 to replace the existing facility.

Staff recommends that the Planning Commission motion to recommend approval of the Fire Station 251 Site Plan to the City Council, for the reasons set forth in the staff report and in the meeting, with the following conditions:

1. A 6-foot masonry wall shall be constructed along the east and south property lines; and
2. All property from the east edge of the pedestrian path westward shall be dedicated to the City as right-of-way, providing 54.5 feet on the east side of the median.

Mr. Jensen verified that the developer would be responsible for the removal of a portion of the median on Pony Express Parkway to accommodate site access. The future developer of the property to the north of the fire station will be responsible for extending the 6-foot privacy wall.

Mr. Mumford clarified that there are existing homes to the south and east and the only vacant property is the commercial area to the north.

Applicant representative Steve Simmons verified that a pre-cast wall could be used to fulfill the requirement for the 6-foot masonry wall.

Commissioner Everett opened the public hearing at 7:00 p.m. As there were no comments, Commissioner Everett closed the hearing.

Commissioner Everett commented that he approves of the architecture and appreciates the design's compliance with City standards.

MOTION: *Commissioner Bergener moved to recommend approval to the City Council of the site plan for Fire Station 251 with the following conditions:*

- 1. A 6-foot masonry wall shall be constructed along the east and south property lines; and*
- 2. All property from the east edge of the pedestrian path westward shall be dedicated to the City as right-of-way, providing 54.5 feet on the east side of the median.*

Commissioner Allen seconded the motion. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.

6.F. PUBLIC HEARING – Antelope Meadows

Mr. Jensen presented the item. The Antelope Meadow Preliminary Plat was approved in 2008 and included 54.76 acres, 1.75 acres of improved open space, an average residential lot size of 9,839 square feet, 156 residential lots, a density of 2.85 dwelling units per acre, and two church sites. The Church of Jesus Christ of Latter-day Saints site located on lot 101 has since been approved and constructed. The applicant has indicated that they have been informed by the LDS Church that there is no longer an intent or design to construct another church in the development. The new proposal includes 54.76 acres, 1.75 acres of improved open space, an average residential lot size of 10,003 square feet, 165 residential lots, a density of 3.01 dwelling units per acre, and one church site. The proposed amendment results in an increase in average lot size by 164 square feet; ten additional residential lots, and an increase of .16 dwelling units per acre. The proposed amendment does not move or change any roadways or infrastructure in the development.

The proposed change adds 10 units to Antelope Meadows and alters the layout of 10 existing lots. While the original preliminary plat was approved under a different zoning ordinance in 2008, staff has evaluated how the proposed changes would comply with the current ordinance. The lots that are added or included in the changes proposed meet all requirements of the R2 zone, comply with the future land use plan, and are similar to the existing lots within Antelope Meadows. The applicant recently had a site plan approved for a pool and clubhouse that would serve the Antelope Meadows subdivision. Through the approval, the City Council indicated the pool and clubhouse would count toward amenity points should Antelope Meadows be amended. As such staff is not recommending any additional amenities be approved for this project. However, as the project is equivalent to the R2 zone, staff feels it is appropriate to require additional open space for the 10 additional lots because the amount of improved open space has not been increased with this plan despite the addition of units. The required open space for an R2 zone is 900 square feet per unit, therefore staff is recommending an additional 9,000 square feet be provided with the amended preliminary plat. Per EMMC 16.35.105(A)(11), the City may require an applicant to pay a fee in lieu of dedication and construction of improved open space. As the requirement for additional open space is not sufficient to create a functional park, staff recommends requiring a fee in lieu. Municipal Code describes the fee as \$3.75 per square foot plus the appraised value of the open space being bought. Thus, a fee in lieu of \$33,750 plus the appraised value of 9,000 square feet is required. As a part of the Antelope pool and clubhouse project, the applicant is dedicating unimproved park space to Eagle Mountain City. The Eagle Mountain Parks Director suggests that rather than be charged the fee-in-lieu, the applicant could instead improve the portion of the Autumn Ridge Park intended to be dedicated to the City.

Staff recommends that the Planning Commission motion to recommend approval of the Antelope Meadows Amended Preliminary Plat to the City Council, for the reasons set forth in the staff report and in the meeting with one of the following conditions:

1. A fee in lieu of \$33,750 plus the appraised value of 9,000 square feet of open space located in Autumn Ridge Park shall be paid to the City prior to recording any amended lots; – OR –
2. The applicant shall improve the unimproved open space being dedicated to the City in Autumn Ridge Park.

Applicant representative Robert Lusk indicated that they are open to either option to meet the open space requirement; however, they are considering both options to determine which would be preferable.

Commissioner Everett opened the public hearing at 7:09 p.m. As there were no comments, Commissioner Everett closed the hearing.

Commissioner Allen said he would prefer for the applicant to improve the open space if it is in the best interests of and more cost-effective for the City and is not a huge burden to the developer as it would be permissible under the Municipal Code allowance for flexible park improvements requirements that most benefit the community.

Commissioner Everett suggested motioning to allow either option to fulfill the increased improved open space requirement to give the applicant time to determine their preference prior to discussions with the City Council; nevertheless, he concurred with the preference for the developer to improve the dedicated open space.

Mr. Jensen clarified that the improvement of the open space would be at the discretion of the applicant. The City is unable to compel the applicant to improve the additional square footage as the fee in lieu would be sufficient to cover the expense of the City improving the area.

MOTION:

Commissioner Bergener moved to recommend approval to the City Council of the amended preliminary plat for Antelope Meadows with either of the following conditions as determined to be the most feasible by the developer with preference for option two:

1. *A fee in lieu of \$33,750 plus the appraised value of 9,000 square feet of open space in Autumn Ridge Park shall be paid to the city prior to recording any amended lots; – OR –*
2. *The applicant shall improve the unimproved open space being dedicated to the City in Autumn Ridge Park.*

Commissioner Allen seconded the motion. Those voting aye: Jeremy Bergener, Matthew Everett, Jason Allen. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.

7. Discussion Items

7.A. CONCEPT PLAN – Stonebridge Corner Mixed-Use Development

Commissioner Everett explained that the item had been noticed as a public hearing then it was later determined that the rezone to Commercial had previously been approved in February 2010, thus a public hearing is not required. Discussion clarified that although it was determined the item excludes the requirement for a public hearing, due to the noticing of a hearing and the attendance of residents desiring to speak, the Chair will permit comment on the item.

Mr. Hobbs presented the item. The parcel made the subject of this report comprises a 2.41-acre parcel of raw ground located on the southwest corner of Stonebridge Lane and Ranches Parkway. The property was once included in the now-expired Ranches Master Plan and was represented as being an area set aside for a golf course hole. On February 2, 2010, the City Council approved the conversion of the property into a commercial site, overlaying a Mix-Use Commercial setting thereon and approving an associated request to assign the then codified Commercial Zone to the property. The City's portrayal of the property as being in a Parks and Open Space General Plan setting is a mapping error. The Planning Division has received an application for a conceptual site plan review of a mixed-use development slated for build-out on the land. Because the plan features a combined residential and commercial use, a conditional use permit (CUP) will have to be applied for to entertain allowing the residential element on the property. Nevertheless, it is agreeable to consider the applicant's idealized plans at this time to help them adjust their design prior to the CUP submittal.

Mr. Mumford stated that a Montessori School and Tagg N Go carwash were approved north of the project with access on Stonebridge Lane. An area to the north on the eastern side of Ranches Parkway has received applications for a 7-Eleven and Betos. The 7-Eleven was tabled to address traffic solutions for Campus Drive left-hand turns onto Ranches Parkway. The City is working with a traffic consultant on solutions for Campus Drive. This project will require a traffic study during the site plan, the next step for the project, to determine if a traffic light or other traffic mitigation is needed at the Stonebridge Lane and Ranches Parkway intersection to accommodate further development.

Mr. Hobbs noted that the site plan review will include a public hearing. He explained that the February 2, 2010 approval vested the property with certain standards in place at that time that are no longer included in current Municipal Code such as a 50-foot setback requirement for the southwest side of the project, a five-story height maximum, outside events and use controls, and consideration of a mixed-use residential development.

Applicant Scot Hazard stated he welcomes feedback from the public and Commission regarding their opinions on the project and uses. The mixed-use building is smaller but similar to the building approved at Parkway Crossroads. The proposed restaurant is intended for a drink shop with drive-through and possibly walkup services rather than dine-in options. The northwest area includes an eatery adjacent to improved open space with picnic tables and shade structures. He had been unaware of the 50-foot buffer requirement. The plan includes a tree-lined, 9-foot buffer. Due to the elevation difference from the homes to the west, a six-foot wall could offer security but not privacy; however, trees may provide screening. The residential use would have reserved carports. Users have expressed interest in the lower-level office spaces. The building location provides for additional right-of-way in the event of a future expansion of Ranches Parkway. The fencing adjacent to the golf course would be open, rather than privacy fencing to

create an open feel. He recognizes the impact of the forthcoming traffic study on the consideration of the project. The design provides eleven one-bedroom, one-bathroom rental units that would be centrally managed.

Discussion ensued regarding potential occupants, occupancy controls, renter turnover, and noise mitigations including floor truss soundproofing for the rental units.

Commissioner Everett recognized the public to speak.

Doug Gardner, Karen Roberts, Camille Gardner, Deborah Gardiner, and Kent Gardiner spoke against the proposed concept due to concerns with compliance with Municipal Code standards, increased traffic, pedestrian safety, homeowner safety, multifamily housing, privacy, noise, screening, emergency vehicle access, development transparency and addressing citizen input, setbacks, negative property value and quality of life impacts, and traffic backing up due to a traffic light at Stonebridge Lane and Ranches Parkway.

Mr. Mumford clarified that the zoning of the property was decided in a public meeting as were the approved uses for the area.

Commissioner Bergener noted the application is a concept plan to provide feedback to the developer and explained that the site plan review will evaluate the plan to ensure it complies with Municipal Code. He agrees with concerns regarding adequate screening and desires an appropriate transition to fencing for the golf course that is visually appealing. The traffic study will further inform their decision.

Commissioner Allen agreed with the need for the masonry wall to provide security. He feels that mixed-use buildings are more appropriate in an urban setting while recognizing that the City has already set precedence by approving the use in another location. Approving a residential component at this location will increase traffic in an already congested area. He approves of the building renderings and the layout in consideration of the unique challenges of the parcel. However, he is concerned with the traffic and stacking impacts of a beverage business due to their popularity and traffic impacts elsewhere in the City. He spoke regarding balancing property rights for residents and developers and expressed appreciation for and encouragement of resident participation in the process.

Commissioner Everett expressed concern with the proposed layout for the northwest portion of the project due to the adjacent uses. Traffic in the general area is an ongoing challenge especially in consideration of the expanding commercial development. He reiterated that adherence to Municipal Code standards will be addressed during the upcoming reviews of the project. He encouraged the developer and the residents to collaborate to resolve issues as much as possible. Although current standards would not permit mixed-use residential, vested rights for the property include consideration for the use. Parking and architectural standards appear to have been met.

8. Next scheduled meeting

The next Planning Commission meeting is scheduled for January 25, 2022.

9. Adjournment

MOTION: *Commissioner Bergener moved to adjourn the meeting at 8:22 p.m. Commissioner Allen seconded the motion. Those voting aye: Jason Allen, Jeremy Bergener, and Matthew Everett. The motion passed with a unanimous vote.*

The meeting was adjourned at 8:22 p.m.

Approved by the Planning Commission on January 25, 2022.


Steve Mumford (1/24/2022 12:55 PM)

Steve Mumford, AICP
Assistant City Administrator/Community Development Director